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San Mateo Co.: Civil Grand Jury Calls For Stronger Oversight Over Alpr Camera Use

By *Bay City News Service*

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to capture vehicle license plate photos to identify vehicles that are connected to ongoing criminal investigations. (Sydney Fishman/Bay City News)

Sydney Fishman/Sydney Fishman/Bay City News



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San Mateo Co.: Civil Grand Jury Calls For Stronger Oversight Over
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The San Mateo County Civil Grand Jury released a report this week calling for stricter oversight for law enforcement agencies' use of automated license plate reader cameras.

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Police departments use the ALPR cameras to investigate crimes like stolen vehicles. But

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Over the last few months, many Bay Area cities and counties have been reexamining their contracts with Flock Safety, the manufacturer of these cameras, considering the federal administration's crackdown on immigrants and the company's checkered record of sharing ALPR data with federal agencies like U.S. Immigration and Customs Enforcement and U.S. Customs and Border Protection.

For its report, the Civil Grand Jury, comprising 19 volunteer members, reviewed publicly available information about ALPR use published by 18 law enforcement agencies in the county, including the San Mateo County Sheriff's Office. They also examined contracts, policy documents, and audit reports from each agency, and conducted interviews with officers and Flock Safety representatives.

The report noted that the county's law enforcement agencies have made improvements in the operation of the ALPR cameras, but many policy documents governing their use are deficient or in need of revision.

Also, though the agencies were vigilant about not sharing ALPR data with out-of-state agencies, there remain inconsistencies in their audit procedures.

"Most operators did not document criteria, process, or controls governing in-state sharing in a manner sufficient to demonstrate compliance with law," the report said.

For example, California law requires that law enforcement agencies only share ALPR data with other public agencies in the state. However, all but one of the 18 law enforcement agencies shared data with private university security departments without establishing whether that entity qualified as a public agency.

A lack of established criteria for in-state data sharing and insufficient compliance language in contracts with Flock Safety were other common issues identified across agencies.

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San Mateo County Sheriff Ken Binder and all local city councils in the county will be required to respond to the report.

"The Sheriff's Office is committed to ensuring the technology is being used for its intended purpose and has a strict ALPR policy governing its use," a spokesperson for the San Mateo County Sheriff's Office said in an email statement. "Compliance is verified through periodic audits conducted by the Sheriff's Office personnel."

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